

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS

May 14, 2026

#	Case Name	Tentative
1.	<u>30-2021-01184189-CU-PO-CJC</u> Holcomb vs. Aliso Villas Condominium Association	Defendants Aliso Villas Condominium Association and Total Property Management, Inc., seek an award of \$48,111.00 as reasonable attorneys' fees incurred in connection with the appeal brought by plaintiff and appellant Scott Palmer Holcomb. Plaintiff brought an appeal in this case after the Court granted nonsuit at trial and entered a judgment against him. The Court of Appeal affirmed the judgment and denied a motion for rehearing. After plaintiff's petition for review by the Supreme Court was denied, the Court of Appeal issued remittitur on February 25, 2026. ROA 760. This Court previously awarded prevailing party attorneys' fees to moving defendant for fees incurred before and at trial. <i>See</i> Minute Order of April 7, 2025, ROA 659. The Court held that the award was authorized under Civil Code §

		5975(c), which provides that, “[i]n an action to enforce the governing documents [of a common interest development], the prevailing party shall be awarded reasonable attorney's fees and costs.” While attorneys’ fees are usually not a recoverable cost on appeal, if they are recoverable under statute or contract at the trial court, they are also recoverable for services on appeal. <i>Harbour Landing-Dolfann, Ltd. v. Anderson</i>, 48 Cal. 4th 260, 263 (1996). The trial court has jurisdiction to award them, regardless of the lack of specific instructions in the opinion or the remittitur. <i>Id.</i> at 265. Thus, moving defendants are entitled to recover reasonable attorneys’ fees as the prevailing parties on appeal. In statutory fee-shifting cases, in which the prevailing party is statutorily authorized to recover his or her attorney's fees from the losing party, the lodestar method is the primary method for establishing the amount of recoverable fees. <i>Glaviano v Sacramento City Unified School District</i>, 22 Cal. App. 5th 744, 750-751 (2018). Under the lodestar method, the trial court must first determine the lodestar figure, which is the reasonable hours spent multiplied by the reasonable hourly rate, based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case. <i>Id.</i> At 751. Moving defendants have presented evidence, consisting of the declaration of Attorney Jody Steinberg and a copy of the billing entries (Exhibit B to the Steinberg declaration) to show that the request for attorneys’ fees of \$48,111.00 is based on a total of 235.3 hours billed as follows: • 36.5 hours at a rate of \$135/hr. (\$4927.50) • 16.3 hours at a rate of \$220/hr. (\$3586.00) • 168.5 hours at a rate of \$235/hr. (\$39,597.50) Given the tasks performed, the Court can find that the billing rates and the number of hours billed are more than reasonable and the fees requested by moving defendants may be awarded.
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		Accordingly, the motion of defendants Aliso Villas Condominium Association and Total Property Management, Inc., for an award of \$48,111.00 as reasonable attorneys' fees incurred in connection with the appeal brought by plaintiff and appellant Scott Palmer Holcomb is GRANTED. Moving party to give notice.
2.	<u>30-2025-01469044-CU-PO-CJC</u> Michaud vs. Costco Wholesale Membership, Inc	Before the Court are the following TEN (10) motions: two (2) Motions to Compel Further Responses to Request for Production of Documents ("MF-RFP"), Set Two, and Sanctions (ROA 446), brought by Plaintiff Valeda Michaud, by and through her Guardian <i>Ad Litem</i>, Melanie Michaud (collectively, "Michaud"), and Charles Michaud (collectively, "Plaintiffs"), one against Defendant Costo Wholesale Corporation ("Corporation"), and one against Defendant Costco Wholesale Membership, Inc. ("Membership") (collectively, "Defendants"); two (2) MF-RFP, Set One, and Sanctions (ROA 450) brought by Plaintiffs, one against Corporation, and one against Membership; a Motion to Compel the Deposition ("MC-DEPO") of Corporation's employee Leigh Ann Ruijters ("Ruijters"), and Sanctions (ROA 451), brought by Michaud against Corporation; a Motion to Compel Further Responses to Request for Admissions ("MF-RFA"), Set Two, and Sanctions (ROA 453), brought by Plaintiffs against Membership; two (2) Motions to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set Two (ROA 262), and Sanctions, brought by Plaintiffs, one against Corporation, and one against Membership; and two (2) MF-SROG, Set One, and Sanctions (ROA 449), brought by Plaintiffs, one against Membership, and one against Corporation. As a preliminary matter, the Court notes that on March 27, 2026, the Court ordered Plaintiffs to file amended motions, declarations, and separate statements for the pending motions. ROA 400. On April 8, 2026, Plaintiffs filed amended moving papers as to all pending motions except for Plaintiffs' MF-SROG, Set Two (ROA 262). The Court

	considers the failure to file an amended motion consistent with court order as a withdrawal of said motion. The underlying controversy involves claims of negligence, premises liability, loss of consortium, and negligent infliction of emotional distress related to injuries suffered by Plaintiffs as a result of Michaud's alleged slip and fall while shopping at Defendants' store in La Habra, California. ROA 36. Plaintiffs seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Corporation to provide further verified, code compliant responses to Plaintiffs' Request for Production ("RFP"), Set One, Nos. 4, 9, 19, 20-23, 41, 42, 44, 46, 47, and 50-53; and compelling Membership to provide further verified, code compliant responses to Plaintiffs' RFP, Set One, Nos. 58. ROA 450, p.2; ROA 438. Additionally, Plaintiffs requests that the orders impose monetary discovery sanctions, pursuant to California Code of Civil Procedure Section 2023.030, against Defendants and/or their counsel of record, Freeman Mathis & Gary, LLP, jointly and severally, in the total collective amount of \$7,560.00, for the costs and attorney's fees incurred by Plaintiffs in connection with Plaintiffs' MF-RFP, Set One (ROA 450). ROA 432, ¶25. Michaud seeks an order, pursuant to California Code of Civil Procedure Section 2025.450, compelling the attendance of Corporation's employee, Ruijters, at the deposition initially noticed by Plaintiffs on October 28, 2025, within fifteen (15) days of the hearing of this motion, and imposing monetary discovery sanctions, pursuant to California Code of Civil Procedure Section 2023.030, upon Corporation and their counsel of record, Freeman Mathis & Gary, LLP, jointly and severally, in the total collective amount of \$7,560 for costs incurred by Michaud in bringing her MC-DEPO. ROA 451, p.2; ROA 436, ¶28. Plaintiffs also seek an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Corporation to provide further verified, code compliant responses to RFP, Set Two, Nos. 57-76; compelling Membership to provide further verified, code compliant responses to RFP,
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	Set Two, Nos. 59- 72; and imposing monetary discovery sanctions, pursuant to California Code of Civil Procedure Section 2023.030 in the amount of \$4,060.00 against Defendants and/or their counsel of record, Freeman Mathis & Gary, LLP, jointly and severally, for the costs incurred by Plaintiffs in connection with their MF-RFP, Set Two. ROAs 444, 446. Additionally, Plaintiffs seek an order, pursuant to California Code of Civil Procedure Section 2033.290, compelling Membership to provide further verified, code compliant responses to Plaintiffs' Request for Admissions ("RFA"), Set Two, Nos. 96-114, 123-143, and 145-159, and imposing monetary discovery sanctions, pursuant to California Code of Civil Procedure Section 2023.030, in the amount of \$7,560.00 against Membership and/or their counsel of record, Freeman Mathis & Gary, LLP, jointly and severally, for the costs and attorney's fees incurred by Plaintiffs in connection with their MF-RFA. ROAs 442, 453. Plaintiffs also seek an order, pursuant to California Code of Civil Procedure Sections 2030.300, compelling Membership to provide further verified, code compliant responses to Plaintiff's Special Interrogatories ("SROG") Set Two, Nos. 42, 64, 65, 70, 74, 75, 81-97, and 104-165; and compelling Corporation to provide further verified, code compliant responses to Plaintiff's SROG, Set Two, Nos. 133-136, 138, and 142-145. ROA 245. Additionally, Plaintiff seeks the imposition of monetary discovery sanctions in the amount of \$6,060 upon Defendants and/or their counsel of record, Freeman Mathis & Gary, LLP, jointly and severally, for the costs and attorney's fees incurred by Plaintiffs attributable to bringing their MF-SROG, Set Two. ROA 262, p.12. Finally, Plaintiff seeks an order compelling Membership to provide further verified, code compliant responses to Plaintiffs' SROG, Set One, Nos. 20, 38, and 41, and compelling Corporation to provide further verified, code compliant responses to Plaintiffs' SROG, Set One, No. 2. ROA 430. Plaintiff additionally requests that the Court impose monetary discovery sanctions against Defendants and/or their counsel of record, Freeman Mathis & Gary, LLP, jointly and severally, in the amount of \$7,560.00 for the
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	costs incurred by Plaintiffs in connection with their MF-SROG, Set One. ROA 449, p.2. In total, Plaintiffs seek monetary discovery sanctions in the amount of \$40,360. Defendant requests that the Court deny Plaintiff's motions in their entirety. ROA 403, p.6; ROA 405, p.8; ROA 407, p.9; ROA 409, p.7; ROA 411, p.5; ROA 413, p.8. I. Statutory Timelines for Serving Initial Responses to Discovery Requests The California Discovery Act requires responses to interrogatories, requests for admission, and requests for production within thirty (30) days after service unless extended or shortened by the court through a party's motion, or the parties agree to an alternate deadline. Cal. Civ. Proc. Code §§ 2030.260, 2030.270, 2031.260, 2031.270, 2033.250, 2033.260. Section 1010.6 extends this deadline by two (2) days for subpoenas served by electronic means. Cal. Civ. Proc. Code § 1010.6(a)(3)(B). If the last day to perform an act falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). Parties may agree in writing to extend the deadline for responding. Cal. Civ. Proc. Code §§ 2030.270 (a)-(b), 2031.270(a)-(b), 2033.260(a)-(b). a. Plaintiffs' SROG, Set One (ROA 449) California Code of Civil Procedure Section 2030.290 provides: [i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection of work product. . . . Cal. Civ. Proc. Code § 2030.290(a). Further, should the court find that a responding party failed to file a timely response, "[t]he court <i>shall</i> impose a
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		monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” <i>Id.</i> at subdiv. (c). A party may be relieved of these waivers only upon motion and only upon the court’s determination that <i>both</i> of the following conditions are satisfied: (1) that “[t]he party has subsequently served a response that is in substantial compliance . . . [and] [2] [t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” Cal. Civ. Proc. Code §§ 2030.290(a). Here, Plaintiffs propounded SROG, Set One, upon Defendants on June 9, 2025, ROA 434, ¶5. Defendants’ deadline to provide verified, code compliant responses was July 11, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2030.260, 2030.270. Defendants served their initial responses by email on August 21, 2025, over <i>one month</i> after the deadline. <i>Id.</i> at 96, 146. There are no facts before the Court indicating that the parties agreed in writing to extend the Defendants’ deadline to respond. Consequently, Defendants have waived all objections to Plaintiffs’ SROG, Set One, and Plaintiffs are entitled to supplemental verified, code compliant responses, without objections. Additionally, the Court finds no substantial justification for Defendants’ failure to serve timely responses to Plaintiff’s SROG, Set One, or that the imposition of sanctions would result in an injustice to Defendants. Thus, sanctions are mandatory. b. Plaintiffs’ RFP, Set Two (ROA 446) California Code of Civil Procedure Section 2031.300 provides that “[i]f a party to whom a demand for [production] is directed fails to serve a timely response . . . [t]he party . . . waives any objection to the demand, including one based on privilege or on the protection for work product” Cal. Civ. Proc. Code § 2031.300(a).
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	Moreover, Courts consistently hold that untimely compliance does not preclude the imposition of monetary sanctions. <i>See</i> Cal. Rules of Court Rule 3.1348 (“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.”); <i>see also Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 831 (2023) (“[u]ntimely compliance is not compliance.”). On October 15, 2025, Plaintiffs propounded RFP, Set Two, upon Defendants. ROA 447, ¶4. Defendants’ deadline to provide initial responses was November 18, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2031.260, 2031.270. Corporation served initial responses to Plaintiffs’ RFP, Set Two, on November 18, 2025. ROA 446, p.48. Membership served initial responses to Plaintiffs’ RFP, Set Two, on December 29, 2025. <i>Id.</i> at 61. Membership does not argue, and the Court does not find, that the parties agreed to an alternate deadline. As a result, Membership must provide verified, code compliant responses to Plaintiff’s RFP, Set Two, without objections. Additionally, the Court finds no substantial justification for Defendants’ failure to serve timely responses to Plaintiff’s RFP, Set Two, or that the imposition of sanctions would result in an injustice to Defendants. Thus, sanctions are mandatory. II. Statutory Timelines for Filing Motions to Compel Further Responses to Discovery Requests If notice of a demand for further responses to discovery requests is not served within forty-five (45) days of the responding party’s service of their verified responses or verified supplemental responses, the demanding party waives the right to compel further responses absent an agreement by the parties in writing to a specific later date. Cal. Civ. Proc. Code §§ 2030.300(c), 2031.310(c). Section 1010.6 extends this deadline by two (2) days for initial responses served by electronic means. Cal. Civ. Proc. Code
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	§ 1010.6(a)(3)(B). If the last day to perform an act falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). “[T]he time within which to make a motion to compel [absent a written agreement between the parties extending the deadline] . . . is mandatory and jurisdictional . . . it renders the court without authority to rule on motions to compel other than to deny them.” <i>Sexton v. Super. Ct.</i>, 58 Cal. App. 4th 1403, 1410 (1997); see <i>Weinstein v. Blumberg</i>, 25 Cal. App. 5th 316, 322 (2018) (reversing a lower court’s order to compel based on the motion’s untimeliness). a. Plaintiff’s RFP, Set One On August 22, 2025, Defendants served initial, written responses to Plaintiffs’ Requests for Production (“RFP”), Set One. ROA 432, ¶4. Defendants thereafter produced responsive documents on September 11, 2025. <i>Id.</i> Plaintiffs’ deadline to file an MF-RFP, Set One, was October 28, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2031.310(c). On September 22, 2025, Plaintiffs served a meet and confer letter upon Defendants, outlining Plaintiffs’ position as to why Defendants’ responses, production, and objections to Plaintiffs’ RFP, Set One, were not code compliant. ROA 432, ¶7; ROA 127, Exh. F. On September 24, 2025, the parties met and conferred by telephone but were unable to resolve the discovery disputes regarding Defendants’ responses to Plaintiffs’ RFP, Set One. ROA 432, ¶7. On January 16, 2026, Plaintiffs served Defendants with the MF-RFP, Set One (ROA 127) by e-mail. ROAs 253. On the record before the Court, there are no facts or declarations supporting a finding that the parties agreed to extend Plaintiffs’ deadline to file Plaintiffs’ MF-RFP, Set One. Accordingly, Plaintiff has waived the right to compel further responses, and the Court DENIES as untimely Plaintiffs’ MF-RFP, Set One (ROA 450), as to both Defendants.
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		III. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); <i>see</i> Cal. Civ. Proc. Code 2023.010(i) (failing to meet and confer, or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties' obligation to meet and confer under the California Rules of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2025.420(b), 2025.450(b)(2), 2030.090(a), 2030.300(b)(1), 2031.060(a), 2031.310(b)(2), 2033.080(a), 2033.290(b)(1). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 ("[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion."), 2030.300(b), 2031.310(b)(2), 2033.290(b)(1); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) ("in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . ."). Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication,
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	regarding the retention of a certified shorthand report to reporter the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). a. Plaintiffs’ MF-RFA, Set Two (ROA 543) On November 18, 2025, Membership provided initial responses to Plaintiffs’ RFA, Set Two. ROA 543, Exh. B, p.36; Plaintiffs’ deadline to file an MF-RFA, Set Two, as to Membership was January 5, 2026. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2033.290(c). On December 30, 2025, Plaintiffs provided a detailed meet and confer letter to Defendant, outlining Plaintiffs’ position on why Membership’s responses to Plaintiffs’ RFA, Set Two, were not code compliant. ROA 454, ¶6; Plaintiffs’ letter offered to meet and confer telephonically at Defendant’s behest. ROA 446, Exh. C., p.67. On January 2, 2026, the parties exchanged email. ROA 454, ¶7. Therein, the parties agreed to extend Plaintiffs’ deadline to file an MF-RFA, Set Two, as to Membership to January 16, 2026. ROA 446, p.148-49. On January 16, 2026, Plaintiffs served Defendants with the MF-RFA, Set Two (ROA 255) by e-mail. ROA 241. Having considered Plaintiffs’ MF-RFA, Set Two (ROA 453) to Membership, in addition to Plaintiffs’ Declaration in Support thereof (ROA 454), the Court finds that while Plaintiffs provides sufficient facts indicating an effort on Plaintiffs’ part to meet and confer with Defendants by phone (<i>see</i> ROA 453, Exh. C, p.67), Plaintiffs’ declaration fails to address Plaintiffs’ efforts to meet and confer “regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). Thus, Plaintiffs’ MF-RFA to Membership is improper on the grounds that Plaintiffs failed to satisfy the statutory meet and confer requirements. b. Plaintiff’s MF-RFP, Set Two, to Corporation (ROA 446)
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	On November 18, 2025, Corporation provided initial responses to Plaintiffs' Requests for Production ("RFP), Set Two by email. ROA 447, ¶4. Plaintiffs' deadline to file an MF-RFP, Set Two, as to Corporation was January 5, 2026. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2031.310(c), 2033.290(c). On January 2, 2026, Plaintiffs served a letter upon Corporation outlining Plaintiffs' position as to why Corporation's responses to Plaintiffs' RFP, Set Two, were not code compliant. ROA 446, Exh. D. Plaintiffs' letter offered to meet and confer telephonically at Defendant's convenience. <i>Id.</i> Also on January 2, 2026, the parties exchanged more email. ROA 446, p.148-49. Therein, the parties agreed to extend Plaintiffs' deadline to file an MF-RFP, Set Two, as to Corporation to January 16, 2026. <i>Id.</i> Although the record before the Court is absent any proof of service as to Plaintiffs' MF-RFP, Set Two, to either Defendant, the Court finds that the motion was filed with the Court on January 16, 2026, and that Defendants have opposed and responded without objection as to either inadequate or untimely service of the motion. <i>See</i> ROAs 265, 405. Thus, the Court exercises its discretion to consider Plaintiffs' RFP, Set Two, to Corporation despite the lack of proof of service. Having considered Plaintiffs' MF-RFP, Set Two (ROA 446), to both Defendants, in addition to Plaintiffs' Declaration in Support thereof (ROA 447), the Court finds that while Plaintiffs provides sufficient facts indicating an effort on Plaintiffs' part to meet and confer with Defendants by phone, which were ignored by Defendants (<i>see</i> ROA 446, Exh. D, p.13 and Exh. C, p.67), Plaintiffs' declaration fails to address Plaintiffs' efforts to meet and confer "regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b). Thus, Plaintiffs' MF-RFP, Set Two, to Corporation (ROA 446) is improper on the grounds that Plaintiffs failed to satisfy the statutory meet and confer requirements.
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c. Plaintiff's MF-RFP, Set Two, to Membership (ROA 446)

Having considered Plaintiffs' MF-RFP, Set Two (ROA 446), to both Defendants, in addition to Plaintiffs' Declaration in Support thereof (ROA 447), the Court finds that while Plaintiffs provides sufficient facts indicating an effort on Plaintiffs' part to meet and confer with Defendants by phone, which were ignored by Defendants (*see* ROA 446, Exh. D, p.13 and Exh. C, p.67), Plaintiffs' declarations fail to address Plaintiffs' efforts to meet and confer "regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b). Thus, Plaintiffs' MF-RFP, Set Two, to Membership (ROA 446) is improper on the grounds that Plaintiffs failed to satisfy the statutory meet and confer requirements.

IV. Motions to Compel Deposition

Under California Code of Civil Procedure Section 2025.450, when a party to the action or a party's agent fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent's attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a).

All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must "be accompanied by a meet and confer declaration" that states that the moving party "has contacted the deponent to inquire about the nonappearance" or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2).

On September 8, 2025, Michaud served a Notice of Deposition for Defendants' Person Most Knowledgeable ("PMK") and requests for production of documents by email. ROA 451, p. 55. Michaud's notice set the deposition for October 10, 2025, and requested that the deposition be conducted by video conference. ROA 451, Exh. D, p.1.

	Email correspondence between the parties spanning October 2, 2025, through October 7, 2025, indicates that Defendants failed to confirm the availability of their PMK or the viability of Plaintiff's proposed date. ROA 451, Exh. E. On October 20, 2025, through email correspondence, Michaud notified Defendants that Michaud intended to narrow the deposition subpoena to Corporation's employee, Ruijters, who, on August 22, 2025, signed verifications in response to Plaintiff's Set One Discovery, under penalty of perjury, identifying herself as the Complex Claims Specialist for Defendants and declaring to have personal knowledge of the matters therein. ROA 451, Exhs. A, F. Michaud also requested that Defendants provide an agreeable date for deposition. ROA 451, Exh. F. On October 28, 2025, Michaud served Corporation with Notice of Taking Deposition of Corporation's Complex Claims Specialist, Ruijters. ROA 451, p.71-72. Michaud's notice scheduled the deposition for November 14, 2025. <i>Id.</i> at 65. On November 5, 2025, Plaintiffs served a Second Notice of Deposition of PMK upon Defendants, via email. ROA 451, pp. 96-97. Plaintiffs' notice set the deposition for November 20th, 2025, via video conference. ROA 451, Exh. J, p.1. The Court finds that all Plaintiff's deposition notices were properly served. <i>See</i> ROA 451, Exh. D, p.1; ROA 451, p.71-72; ROA 451, Exh. J, p.1; ROA 451, p.147. On November 11, 2025, Defendant filed an Objection to Michaud's Notice of Taking Deposition of Ruijters. ROA 451, p.129. On November 13, 2025, Michaud sent a meet and confer letter to Defendants outlining Michaud's position as to why Corporation's objection was invalid. ROA 451, pp. 132-34. Michaud's letter warned that Defendants' failure to provide confirmation by November 17, 2025, would result in Michaud's proceeding with a motion to compel. <i>Id.</i> at 134.
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	Michaud served Corporation with notice of MC-DEPO of Ruijters, and Sanctions (ROA 178) by email on November 17, 2025. ROA 178, p. 180. Thus, Michaud's meet and confer declaration in support of her MC-DEPO is subject to the statutory guidelines applicable <i>before</i> January 1, 2026, which required only that a moving party's meet and confer declaration "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." 2004 Cal. Legis. Ch. 182 (A.B. 3081). On November 25, 2025, the parties attended IDC as ordered. ROA 195. Therein, the Court ordered the Defendants to proceed with outstanding depositions (ROA 451), no later than January 15, 2026. <i>Id.</i> Finally, the Court continued all motions (ROAs 117, 127, 178) and set another IDC for January 28, 2026. <i>Id.</i> In Defendants' December 19, 2025, meet and confer letter to Plaintiffs, Defendants characterize the Court's November 25, 2025, order for Defendants to proceed with outstanding depositions (ROA 195) as evincing that the Court was merely "inclined to compel Ms. Ruijters' deposition[,] and stated that Corporation "will not be producing her absent a court order." ROA 451, pp. 142-43. On December 22, 2025, Plaintiffs responded via a meet and confer letter, reminding Defendants of the Court's Minute Order instructing the parties to conduct all outstanding depositions, to include the deposition of Ruijters. ROA 451, p.145. Corporation did not produce Ruijters for deposition by January 15, 2026, in defiance of this Court's order (ROA 195). On January 26, 2026, the Court, <i>sua sponte</i>, continued the IDC scheduled for January 28, 2026, to February 9, 2026. ROA 284. On February 2, 2026, Michaud served a Third Notice of Taking Deposition of Ruijters upon Corporation by email. ROA 451, p.156. The Notice set the deposition for February
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	13, 2026, via video conference. ROA 451, p.147. On February 6, 2026, Defendants responded by email, confirming that Corporation would not produce Ruijters for deposition until after a hearing on the merits and only upon a Court order requiring Ruijters' attendance is furnished after said hearing. ROA 451, p.157. On February 10, 2026, the Court continued the IDC and all motions to March 25, 2026, pursuant to the parties' joint stipulation (ROA 338). ROA 355. On March 16, 2026, the parties met and conferred by telephone but did not resolve the disputed deposition of Ruijters. ROA 366, p.1. Pursuant to the foregoing, the Court is satisfied that Plaintiff's meet and confer declaration provides sufficient facts showing a good faith attempt to informally resolve the disputed matter of Defendant's refusal to provide Ruijters for deposition. Rule 3.1345 of the California Rules of Court requires motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court rule 3.1345(a). No separate statement is required when: (1) no response has been provided to the discovery request; or (2) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Court rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008). Here, because Ruijters has not appeared for Michaud's properly noticed deposition, the Court finds that Michaud is not required to submit an accompanying separate statement. A party that is served with a deposition notice that does not comply with the provisions of Section 205.210, outlined <i>infra</i>, waives any error or irregularity unless they serve a
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	written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b). Service of the objection must be made in accordance with California Code of Civil Procedure Section 1101. Cal. Civ. Proc. Code § 2025.410(b). An objection under California Code of Civil Procedure 2025.210 that is timely and properly served prevents the ensuing deposition from being used against the objecting party, pursuant to California Code of Civil Procedure Section 2025.620, “if the party did not attend and if the court determines that the objection was a valid one.” <i>Id.</i> A deposition may only be stayed pending a court’s determination of an objecting party’s motion for an order “staying the taking of the deposition and quashing the deposition notice.” Cal. Civ. Proc. Code § 2025.410(c). The sole ground upon which a defendant may object under California Code of Civil Procedure Section 2025.210 is that a plaintiff served a deposition notice on any date that is <i>earlier</i> than twenty (20) days “after the service of the summons on, or appearance by, any defendant” without leave of court. Cal. Civ. Proc. Code 2025.210(b). On November 11, 2025, <i>sixty-four (64) days</i> after Plaintiffs’ initial deposition notice (ROA 451, p.55), and <i>fourteen (14) days</i> after Michaud’s first, more narrowed deposition notice requesting Ruijters’ appearance, Corporation filed an Objection to Michaud’s Notice of Taking Deposition of Ruijters. ROA 451, p.129. Despite Corporation’s objection, on November 25, 2025, the Court ordered all outstanding depositions (to include that of Ruijters) to proceed no later than January 15, 2026. ROA 195. Defendants’ objection rests on the grounds that Ruijters lacks any personal knowledge of the matters at issue and, as a high-level corporate officer, is exempt from opposing party deposition by the apex doctrine. <i>Id.</i> The Court notes that Defendants’ objection, certified by Defendants’
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	counsel, Freeman Mathis & Gray, directly contradicts Ruijters’ sworn verifications provided in response to Plaintiff’s Set One Discovery, wherein Ruijters declares to have personal knowledge of the matters therein. <i>See</i> ROA 451, Exh. F. Here, the Court finds that Defendant raised no objection under California Code of Civil Procedure Section 2025.410 as to any of Plaintiff’s multiple deposition notices, nor has Defendant moved to stay the taking of the deposition or quash the deposition notice. Thus, Defendant has waived any error or irregularity with Plaintiff’s notices and has failed to raise any valid objection justifying staying Plaintiff’s duly noticed depositions. Additionally, the Court finds that Defendant’s objection, raised after an unreasonable delay, might have supported a motion for a protective order or justified staying the deposition pending a motion to quash the deposition notice, but it does not excuse nonappearance at a properly noticed deposition under California Code of Civil Procedure Section 2025.410. The Court further finds that Ruijters’ sworn verifications undermine any claim that she lacks personal knowledge of relevant facts or is shielded from deposition under the apex doctrine. Accordingly, Defendants’ objection to Plaintiff’s Notice of Deposition of Ruijters is OVERRULED. Pursuant to the foregoing, the Court finds that Michaud’s MC-DEPO is proper and that Corporation is liable for misuse of the discovery process for the following: “[f]ailing to respond or to submit to an authorized method of discovery[;] [m]aking, without substantial justification, an unmeritorious objection to discovery[;]” and “[d]isobeying a court order to provide discovery.” <i>See</i> Cal. Civ. Proc. Code § 2023.010(d), (e), (g). Consequently, the Court will grant Michaud’s motion and impose monetary discovery sanctions upon Corporation. V. Code Compliant Responses to Special Interrogatories A party’s response to interrogatories must consist of either:
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	(i) an answer, (ii) an objection, or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a). The responding party has a duty to answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 783 (1978). Answers must be fully responsive and may not reference other documents in lieu of a response. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783-84 (finding "it is not proper to answer by stating 'See my Deposition', or 'See my pleading'). If a response requires reference to another document, said document should be summarized and included in a comprehensive response. <i>Id.</i> Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete response, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); see <i>Regency Health Services, Inc. v. Super. Ct.</i>, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption from the general duty to conduct a reasonable investigation to obtain responsive information to discovery requests). This duty encompasses the responding party's responsibility to provide information available from sources under their control, such as the party's lawyer, agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Castaline v. City of Los Angeles</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that "[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete response after making a reasonable effort to obtain the requested information, they must specify why the information is
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	unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, responses must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating “[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories.”). If an interrogatory requires an abstract, an audit, or a summary of information contained in records under the responding party’s control, the responding party may elect to permit the inspection and copying of the records in lieu of a response, as long as the burden and expense of doing so would be substantially the same for both parties. Cal. Civ. Proc. Code 2030.230. Selecting this option is tantamount to verifying that the required records actually exist and contain the necessary information to answer the interrogatory. <i>Deyo, supra</i>, 84 Cal. App. 3d at 784 (<i>citing Kaiser Found. Hospitals v. Super. Ct. for Los Angeles Cnty</i>, 275 Cal. App. 2d 801, 805 (1969). a. Plaintiff’s SROG, Set One, No. 20 to Membership Plaintiff’s SROG, Set One, No. 20 to Membership requests that Membership “[i]dentify all employees, officers, or agents of YOURS with knowledge of YOUR corporate structure, operations, or responsibilities relating to Costco Wholesale Corporation.” ROA 430, p.4. Membership responds with blanket objections. <i>Id.</i> All of Membership’s objections to Plaintiff’s SROG, Set One, No. 20, are waived by operation of law (<i>see supra</i>) and therefore OVERRULED. Accordingly, Membership must provide a verified, code compliant response, without objections, to Plaintiff’s SROG, Set One, No. 20. b. Plaintiff’s SROG, Set One, No. 38 to Membership Plaintiff’s SROG, Set One, No. 38, to Membership requests that Membership “[i]dentify all persons with knowledge of YOUR corporate responsibilities regarding the operation,
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	safety, and maintenance of warehouse stores in California.” ROA 449, p.5. Membership provides a hybrid response with multiple objections. ROA 430, p.5. All of Membership’s objections to SROG, Set One, No. 38 are waived by operation of law (<i>see supra</i>) and therefore OVERRULED. Plaintiff responds, stating that “Costco Wholesale Membership, Inc. neither operates, controls, [n]or maintains Costco warehouses nor has had the opportunity to do so for the subject property where the alleged incident occurred.” <i>Id.</i> The Court finds that Membership’s response is code compliant. Thus, Membership has no obligation to provide a further response to Plaintiff’s SROG, Set One, No. 38. c. Plaintiff’s SROG, Set One, No. 41 to Membership Plaintiff’s SROG, Set One, No. 41 to Membership demands that Membership “[s]tate whether YOU have been named as a defendant in any other lawsuit involving an injury occurring on the premises of a Costco warehouse, and if so, identify the case name, court, and case number.” ROA 430, p.6. Membership provides a hybrid response with multiple objections, all of which are waived by operation of law (<i>see supra</i>) and therefore OVERRULED. Membership’s response provides that “Responding Party plays no role in the operation of the Costco warehouses other than to coordinate the initiation of renewal of memberships. Responding Party does not have a supervisory or management role of the employees of Defendant COSTCO WHOLESALE CORPORATION who perform those roles.” ROA 430, p.7. The Court finds that Membership’s answer is unresponsive to the question posed and evasive. Accordingly, Membership must provide a verified, code compliant
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	response to Plaintiff’s SROG, Set One, No. 41, without objections. d. Plaintiff’s SROG, Set One, No. 2 to Corporation Plaintiff’s SROG, Set One, No. 2 to Corporation requests that Corporation “state the specific location on the SUBJECT PROPERTY where the INCIDENT occurred.” ROA 430, p.8. Corporation provides a hybrid response with one objection, which is waived and therefore OVERRULED. <i>See supra</i>. Corporation responds as follows: “Responding Party is informed and believes that this incident occurred indoors in the paper section. Discovery in this matter is ongoing, and Responding Party reserves the right to supplement or amend this response as the matter progresses.” The Court finds that Corporation’s response fails to specify why the information is unavailable or detail the efforts Corporation made to obtain it. It is therefore not code compliant. Accordingly, Corporation must provide a verified, code compliant supplemental response to Plaintiff’s SROG, Set One, No. 2, without objections. VI. Sanctions re: Motions to Compel Deposition When a court grants a motion to compel under Section 2025.450, the court must impose monetary sanctions in favor of the noticing party and against the deponent, “unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.450(g)(1). As discussed in detail above, the Court finds that Corporation’s failure to provide Ruijters for deposition was without justification whatsoever, particularly in defiance of this Court’s order. Further, the Court finds no facts on the record indicating that the imposition of monetary discovery sanctions against Corporation to compensate Michaud for the costs associated with her MC-DEPO would be unjust.
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	Thus, sanctions are appropriate. VII. Sanctions re: Motions to Compel Further Responses to Discovery Requests [C]ourts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d), 2033.290(d). “Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds that Plaintiffs offer no substantial justification for failing to abide by the statutory guidelines discussed above as to Plaintiffs’ MF-RFP, Set One (untimely filed); MF-RFA, Set Two (inadequate meet and confer declaration); and MF-RFP, Set Two (inadequate meet and confer). Additionally, the Court finds no reason why the imposition of sanctions upon Plaintiff for unsuccessfully bringing the motions would work an injustice. Consequently, the imposition of sanctions upon Plaintiff for unsuccessfully bringing these motions is appropriate. Additionally, the Court finds no substantial justification for Corporation’s failure to provide Ruijters for deposition, as requested by Plaintiff’s MC-DEPO and as ordered by this Court, or for Defendants’ failure to provide timely, code
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	compliant responses to Plaintiff’s SROG, Sets One and Two, and RFP, Set Two. Further, the Court finds no reason why the imposition of sanctions upon Defendants would result in any injustice. Thus, the imposition of sanctions upon Corporation for unsuccessfully opposing Plaintiff’s MC-DEPO (ROA 451), and upon both Defendants for failure to oppose Plaintiff’s MF-SROG, Set One (ROA 449), and failure to file timely responses to Plaintiff’s initial discovery requests (SROG, Sets One and Two; and RFP, Set Two) are appropriate. VIII. Assigning Liability for Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); <i>e.g.</i>, <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986); <i>see Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020). Here, Plaintiffs’ failure to adhere to statutory guidelines in bringing their MF-SROG, Set One (ROA 449); MF-RFP, Set One (ROA 450); MF-RFA, Set Two (ROA 446); and MF-RFP, Set Two (ROA 446); is attributable to Plaintiff’s counsel. Thus, sanctions are appropriate against Plaintiffs’ counsel only for Plaintiffs’ failure to succeed on these motions. Additionally, Corporation’s failure to produce Ruijters for
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		deposition is attributable to Corporation's counsel's illegitimate objection and disobedience of this Court's orders. Thus, sanctions are appropriate against Corporation's counsel only for Corporation's unsuccessful opposition to Plaintiff's MC-DEPO (ROA 451). Finally, Defendants' failure to provide timely and code compliant responses to Plaintiff's SROG, Set One, Nos. 2, 20, and 41 (ROA 449); and timely responses to RFP, Set Two (ROA 446), is not attributable to client misconduct. Thus, sanctions are appropriate against counsel for Defendants only. IX. Determining Reasonable Monetary Sanctions Three principles govern the award and amount of attorney's fees and costs imposed as a discovery sanction: (i) compulsion; (ii) causation; and (iii) reasonableness. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790. Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by "a declaration setting forth facts supporting the amount of any monetary sanction sought." Cal. Civ. Proc. Code § 2023.040. "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). "After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are <i>not</i> compensable as discovery sanctions." <i>Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Here, having weighed these principles, and having
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	considered both Parties' counsel's calculation of the reasonable expenses incurred as a result of bringing these motions, the Court finds that for successfully opposing a number of Plaintiff's motions, Defendant is entitled to an award of monetary discovery sanctions in the amount of \$1,000.00. Additionally, for successfully bringing a number of the herein motions, the Court finds that Plaintiff, too, is entitled to a monetary sanctions award in the amount of \$1,00.00. Consequently, the sanctions awards will offset. Accordingly, the Court makes the following orders: The Court GRANTS IN PART Plaintiffs' Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 449) as to both Defendants and ORDERS Membership to serve verified, code compliant responses, without objections, to Plaintiff's Special Interrogatories Nos. 20 and 41; and ORDERS Corporation to serve verified, code compliant responses, without objections, to Plaintiff's Special Interrogatories, Set One, No. 2, both due no later than ten (10) days after receiving notice of this Order. The Court DENIES Plaintiffs' Motion to Compel Further Responses to Request for Production, Set One (ROA 450), as to both Defendants. The Court GRANTS Plaintiffs' Motion to Compel the Deposition of Leigh Ann Ruijters and ORDERS Corporation to produce Ms. Ruijters for Deposition within fourteen (14) days of receipt of notice of this Order. The Court DENIES Plaintiffs' Motion to Compel Further Responses to Requests for Admission, Set Two (ROA 453). The Court DENIES Plaintiffs' Motion to Compel Further Responses to Request for Production, Set Two (ROA 446) as to both Defendants; however, the Court ORDERS Membership to provide verified, code compliant <i>supplemental</i> responses to Plaintiff's Request for Production, Set Two, without objections, no later than ten (10) days after receiving notice of this order.
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		Lastly, considering the inordinate time expended by the Court in addressing the parties' exceptionally onerous discovery disputes, all further discovery issues in this matter will be heard before a Discovery Reference, either by the parties' stipulation or by Court Order. The Court orders the Clerk to give notice.
3.	<u>30-2021-01230129-CU-OE-CJC</u> Santa Ana Police Officers Association vs. City of Santa Ana	Before the Court are two (2) motions: Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) and Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 892). On March 10, 2026, Defendant City of Santa Ana ("Defendant") filed the instant Motions against Plaintiff Gerry Serrano ("Plaintiff"). ROAs 883, 892. Defendant requests that the Court grant the Motion to Compel Production (ROA 883) and order the following: 1. Disclosure to the [Defendant] of all records produced to Plaintiff [] in response to his Pitchess motion filed on April 14, 2025 (ROA #611), as ordered by the Court (ROAs #734, 763) subject to a protective order; 2. The disclosure of these records must occur within ten (10) days of entry of the signed protective order. ROA 883. Additionally, Defendant requests that the Court grant the Motion to Compel Production (ROA 892) and order the following: 1. Compel Plaintiff [] to produce records concerning his efforts to challenge CalPERS' determinations regarding his pension, to increase or preserve pension benefits, and the Defendant's responses to those efforts, to the extent he has asserted Pitchess objections to the production or use of such records, followed by an in-camera review and subject to a protective order; 2. Compel Plaintiff [] to produce records he expressly identified but withheld from production in response to Defendant's [] Requests for Production of Documents, Set One, as reflected in his Pitchess

	privilege log dated October 27, 2025, followed by an in-camera review and subject to a protective order; and 3. The disclosure of these records must occur within ten (10) days of entry of the Court’s order and a signed protective order. ROA 892. Plaintiff requests that the Court deny Defendant’s Motion for Discovery of Personnel and Other Records of Plaintiff. ROA 977. Additionally, Plaintiff requests that the Court deny Defendant’s Motion for Discovery of Personnel Records (Further Production) and impose sanctions in the amount of \$3,500 pursuant to Code of Civil Procedure §§ 2023.030, 2031.310, 2030.090, or 2030.290. ROA 979 I. Discovery Cutoff Date California Code of Civil Procedure Section 2024.020 specifies that “[e]xcept as otherwise provided in this chapter, any party shall be entitled <i>as a matter of right</i> to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Cal. Civ. Proc. Code § 2024.020 (emphasis added). “Thus, if a party properly notices a discovery motion to be heard on or before the discovery motion cutoff date, that party has a <i>right</i> to have the motion heard.” <i>Pelton-Shepherd Indus., Inc. v. Delta Packaging Prods., Inc.</i>, 165 Cal. App. 4th 1568, 1586 (2008) (emphasis original). Here, the discovery cutoff date was March 20, 2026, and the last day for motions to be heard was April 5, 2026. <i>See</i> ROAs 787, 800. Defendant filed its motions on March 10, 2026, with a hearing date reserved for April 1, 2026. <i>See</i> ROAs 883, 892. Accordingly, the motions are timely, and Defendant is entitled to a hearing on the merits. II. Pitchess Motion Standard Peace officer personnel records and information obtained from those records are confidential and may not be
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		disclosed in any criminal or civil proceeding, except pursuant to a two step procedure referred to as a <i>Pitchess</i> motion. Cal. Pen. Code, § 832.7(a); Cal. Evid. Code § 1043; <i>Cnty. of Los Angeles v. Super. Ct.</i>, 219 Cal. App. 3d 1605, 1610 (1990). Personnel records are defined as: any file maintained under that individual's name by his or her employing agency and containing records relating to any of the following, [among others]: (1) [p]ersonal data, including marital status, family members, educational and employment history, home addresses, or similar information; (2) [m]edical history; (3) [e]lection of employee benefits; or (4) [e]mployee advancement, appraisal, or discipline. Cal. Pen. Code §§ 832.8(a)(1), (2), (3), (4). Good cause for discovery exists when the defendant shows both “ ‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.” <i>City of Santa Cruz v. Municipal Ct.</i>, 49 Cal. 3d 74, 84 (1989); <i>Warrick v. Super. Ct.</i>, 35 Cal. 4th 1011, 1019 (2005); <i>see</i> Cal. Evid. Code § 1043(b)(3). To show the requested information is material, the declaration must contain a “ ‘specific factual scenario’ which provide[s] sufficient information to allow the trial court to assess whether the records [are] material[.]” <i>City of San Jose v. Super. Ct.</i>, 67 Cal. App. 4th 1135, 1146 (1998). In other words, the moving party must articulate how the discovery being sought will support his claim or proposed defense, or how it will impeach the officer’s version of events. <i>See Garcia v. Superior Court</i>, 42 Cal. 4th 63, 71 (2007). “This good cause showing is a ‘relatively low threshold for discovery.’ (Citation omitted). Assertions in the affidavits ‘may be on information and belief and need not be based on personal knowledge (citation omitted), but the information sought must be requested with sufficient specificity to preclude the possibility of a [party] simply casting about for any helpful information.’ “ <i>Garcia, supra</i>, 42 Cal. 4th at 70. If the moving party has established good cause, the trial
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court proceeds to the second step—an in chambers examination of the records to determine whether they have any relevance to the issues presented in the current proceedings. Cal. Evid. Code § 1045(b). “In the in camera hearing, the court determines whether the relevant information or documents are precluded from disclosure by Evidence Code section 1045, subdivisions (b) and (c).

III. Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) and Declaration (ROA 893)

In its Motion, Defendant identifies the types of records sought and contends that the documents described in its Motion are in the possession, custody, or control of Plaintiff and/or his counsel and have been withheld based on Plaintiff’s asserted Pitchess objections. ROAs 883, 893.

As for good cause, in its Declaration, Defendant argues that in Plaintiff’s Complaint, he alleges that Defendant retaliated against him and took adverse actions motivated by hostility toward him and his conduct as a union representative. ROA 893. Defendant further argues that these allegations place Defendant’s motivations and Plaintiff’s conduct at issue. *Id.* Lastly, Defendant asserts that it seeks production only of documents Plaintiff has already identified and withheld based on asserted Pitchess objections; and does not seek to require Plaintiff to conduct new searches or recreate documents. *Id.*

In this Court’s view, Defendant’s request is misdirected to the extent it seeks Pitchess review of documents purportedly in the possession of Plaintiff or his counsel, rather than from the appropriate custodial agency as contemplated by Evidence Code sections 1043–1045.

Further, while Defendant identifies the types of records sought, Defendant’s Declaration fails to establish good cause with the required specificity. Defendant relies on general assertions regarding relevance to motive, credibility, and conduct, without articulating a specific logical connection between the requested records and the subject matter of the pending litigation.

Accordingly, Defendant has not established good cause, and the Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) is **DENIED**.

IV. Motion to Compel Production (ROA 892) and Declaration (ROA 870).

In its Motion, Defendant identifies the types of records sought and contends that the documents described in its Motion are in possession, custody, or control of the custodian(s) of records for the City of Santa Ana including the Santa Ana Police Department and Human Resources Department. ROAs 870, 892.

As to good cause, in its Declaration, Defendant contends that the production of these records is necessary for deposition preparation, depositions, motion practice, trial, and for its overall defense. ROA 870. Defendant further argues that allowing both parties to rely on the same court reviewed materials promotes fairness, efficiency, and orderly adjudication of Plaintiff's claims. *Id.*

Additionally, Defendant asserts that Plaintiff has put these records at issue by filing his complaint against the City and referencing these matters in support of his claims and that makes reciprocal discovery appropriate. ROA 870. Defendant's candidly admit that, "[Defendant's] position has not been persuasive with the Court and/or Counsel for Plaintiff." ROA 870.

While Defendant identifies the types of records sought and the custodians believed to possess them, Defendant's Declaration yet again fails to establish good cause with the required specificity. General assertions that the records are relevant to defense preparation or that reciprocal discovery would promote fairness do not satisfy the statutory requirements. Nor does Plaintiff's prior Pitchess motion or the Court's earlier in camera review relieve Defendant of its independent obligation to establish good cause.

Accordingly, Defendant has not established good cause, and Motion for Discovery of Personnel and Other Records

	of Plaintiff (ROA 892) is DENIED. V. Sanctions California Code of Civil Procedure Section 2023.030 provides that “[t]he [C]ourt <i>may</i> impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.” Cal. Civ. Proc. Code § 2023.030 (emphasis added). The Court exercises its discretion to not impose sanctions on Defendant’s counsel. Accordingly, Defendant’s Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) and Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 892) are DENIED. Plaintiff to give notice.
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